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LINE 8

25-CLJ-07808

U.S. BANK NATIONAL ASSOCIATION VS GEOARTBONAL CORRAL

U.S. BANK NATIONAL ASSOCIATION
GEOARTBONAL CORRAL

DOUGLAS S WALLACE
JUSTIN REITER

PLAINTIFF'S MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION

TENTATIVE RULING:

Plaintiff U.S. Bank N.A.'s unopposed Motion for Summary Judgment or, in the Alternative, Summary Adjudication is DENIED WITHOUT PREJUDICE.

As a preliminary matter, the proofs of service of notice of the motion and its supporting papers is defective. Both proofs omit the name of the law firm that is part of Corral's counsel's address of record. (Feb. 24, 2026 Amended Notice of Motion, p. 2; Feb. 10, 2026 Notice of Motion, p. 2.)

Service by mail must be "addressed to the person on whom it is to be served, at the office address as last given by that person on any document filed in the cause and served on the party making service by mail[.]" (Code Civ. Proc., § 1013, subd. (a).) "Successful service by mail requires strict compliance with all statutory requirements, including those set forth in section 1013; the failure to comply deprives a court of jurisdiction to act." (*Lee v. Placer Title Co.* (1994) 28 Cal.App.4th 503, 509.)

Even minor technical defects such as omitting the law firm's name from the address render service by mail ineffective, as was the case in *Triumph Precision Products, Inc. v. Insurance Co. of North America* (1979) 91 Cal.App.3d 362. There, because name of the attorney's law firm was listed in addition to the attorney's name on the party's prior court filings, "the correctly addressed envelope should have included the firm name." (*Triumph Precision Products, Inc.*, *supra*, at p. 365.) The service by mail was thus ineffective. (*Ibid.*) Such is the case here.

In addition and just as important, both notices contain incorrect locations for the hearing location. (See Amended Notice of Motion, p. 1; Notice of Motion, p. 1.) The first notice states that the motion will be heard by Department 2 in the Norther Courthouse in South San Francisco and the amended notice has the correct department, Department 4, but states that the hearing will be in the Central Courthouse in San Mateo. Department 4 is located at the Hall of Justice, 400 County Center, Courtroom 4C in Redwood City, California. (See (See Cal. Rules of Court, rule 3.1110 [the notice "must specify" the location of the hearing].)

A "court lacks jurisdiction to rule on a motion that has not been properly noticed for hearing on the date in question." (*Diaz v. Professional Community Management, Inc.* (2017) 16 Cal.App.5th 1190, 1204–1205.) Accordingly, because the proofs of service are defective and there is otherwise no

indication that Corral has received proper notice of the motion, the motion is denied without prejudice to a properly noticed and served renewed motion.

If the tentative ruling is uncontested, it shall become the order of the court without the need for a formal order.

2:00 PM

LINE 9

26-CIV-02132

JESSICA CASTIGLIONE VS INTERNATIONAL BROTHERHOOD TEAMSTERS LOCAL 856

JESSICA FAWN CASTIGLIONE
INTERNATIONAL BROTHERHOOD TEAMSTERS LOCAL 856LISA L. GYGAX
SUSAN GAREA

DEMURRER TO DEFENDANT TEAMSTERS LOCAL 856 TO COMPLAINT OF CASTIGLIONE

CONTINUED FROM 9/1/2026 due to request by plaintiff's counsel and agreed to by defense counsel. Plaintiff contests. The tentative ruling posted August 31, 2026 is reposted below.

TENTATIVE RULING:

This is a complaint for damages brought by Plaintiff Jessica Castiglione (plaintiff) in which she complains of "systemic illegal employment practices" committed by defendants International Brotherhood of Teamsters Local 856 (Local 856), International Brotherhood of Teamsters (IBT), Sean O'Brien, Fred Zuckerman, Chris Rosell, Peter Finch, Alex Topete, Wilver Arevalo, and Fuad Osman (collectively, Defendants). (Complaint, filed Mar. 23, 2026, ¶ 2.)

Local 856 now demurs to all seven causes of action in Plaintiff's complaint. (NODD, filed May 22, 2026.) Local 856 demurs to all claims on the grounds that it was never Plaintiff's employer and is therefore not a proper defendant to any of Plaintiff's causes of action. (*Id.* at p. 1:25-26.) Local 856 also demurs to each cause of action individually on separate grounds.

Legal Standards

The purpose of a demurrer is to test the legal sufficiency of the facts alleged in the operative complaint to see whether they state a cause of action under any legal theory, as a matter of law. (*New Livable Cal. v. Association of Bay Area Gov'ts* (2020) 59 Cal.App.5th 709, 714–715; *Genis v. Schainbaum* (2021) 66 Cal.App.5th 1007, 1014.) The demurrer may be made to the entire complaint or to any of the cause of action therein. (Code Civ. Proc., § 430.50, subd. (a).) The defect must appear from the face of the pleadings or judicially noticeable facts. (*Blank v. Kirwant* (1985) 39 Cal.3d 311, 318.)

To properly state a cause of action, a complaint must allege every element of that cause of action. (*Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1134.) And to be sustained, a "demurrer must dispose of an entire cause of action." (*Fremont Indemnity Co. v. Fremont General Corp.* (2007) 148 Cal.App.4th 97, 119.)

In determining whether a complaint states facts sufficient to constitute a cause of action, courts accept the factual allegations of the complaint and any matters of which judicial notice can be taken but disregards contentions, deductions, and conclusions. (Code Civ. Proc., § 430.30, subd. (a); *Richtek USA, Inc. v. uPI Semiconductor Corp.* (2015) 242 Cal.App.4th 651, 658.) "The
